

8.2 DEMOLITION & EXCAVATION

Demolition requires Council consent and supporting documentation in accordance with the Heritage Act 1977.

Objectives

- (a) To ensure both listed items and buildings which contribute to the significance and character of Heritage Conservation Areas are conserved.
- (b) To discourage demolition so as to preserve the value of heritage items and Heritage Conservation Areas for the local community.
- (c) That replacement development enhances the character of the conservation area.

Controls

- (a) Unless identified alternately, heritage listing of buildings encompasses the whole building and site including outbuildings and boundary enclosures.
- (b) Demolition of a heritage item or contributory building in a conservation area will generally not be supported, unless there are overriding reasons such as extreme structural damage.
- (c) Demolition of a non-contributory building that detracts from a Conservation Area and replacement with an appropriately designed infill building is generally supported provided the proposed infill development is consistent with the objectives and controls outlined in this Part.
- (d) Excavation beneath and/or adjacent to heritage items and/or buildings in heritage conservation areas will only be permitted if it is supported by both a Geotechnical Engineering report and a Structural Engineering report.
- (e) Excavation will not be permitted if:
 - (i) It will occur under common walls and footings to common walls, or freestanding boundary walls, or under any other part of adjoining land; or
 - (ii) It will occur under or forward of the front facade.